



**West Bengal State Electricity
Distribution Co. Ltd.**

(A Govt. of West Bengal Enterprise)

**Vidyut Bhawan, Bidhannagar,
Kolkata - 700 091**

Office Order No: 332

Dated: 21-07-2010

WBSEDCL (ROPA) Rules, 2009 was published vide Office Order No: 89 dated 16.02.09, effect of which was given from 01.01.06 notionally and actually from 01.04.07. Several modifications and clarifications have so far been made in respect of different provisions of the said Rules from time to time. The WBSEDCL (ROPA) Rules, 2009 has provided for elevation of induction level posts of Diploma Engineers/B.Sc. Degree holders of different technical cadres in the revised Pay Band of Rs. 6,300/- Rs. 20,200/- (Minimum initial of Rs.9,000/-) with Grade Pay 4,400/- corresponding to un-revised pay scale of Rs.4,650/- -Rs. 9,050/-. Procedure for fixation of Pay of such employees in the revised scale of Pay was elaborately clarified subsequently through Office Order No: 116 dated 28.04.09 wherein it was specifically mentioned that the elevation of scale of Pay of those employees would be effective from 01.01.2006. But, it has been noticed that in some cases site Offices have given effect of such elevation by way of fixation of Pay in the higher scale with effect from 01.01.2006 or on subsequent date prior to 1.4.2009 possibly because they were unaware of existence of clarification issued through Office Order no: 116 dated 28.04.2009. As a result, some of the employees in the respective category have drawn higher Pay than the Pay which was supposed to be fixed as their Pay in the revised Scale in terms of Office Order no. 116 dated 28.04.2009.

The matter was referred to the Anomaly Committee for examination and suitable recommendation for remedial action. The Committee has since submitted their report. The recommendation of the Committee has been examined carefully by the authority at the appropriate level and it has been decided to implement the same after certain suitable modifications.

In view of above and considering all aspects concerning the issue it has been decided that the following procedures be adopted for removing the anomalies:-

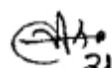
"Clarifications/provisions contained in the Office Order No: 116 dated 28.04.2009 be implemented thoroughly and strictly and Pay fixation of all employees of this category be made in terms of the said Office Order giving the benefit of elevation of scale only with effect from 1.4.2009. The excess payment/overdrawal made during the period from 01.04.2007 to 31.03.2009 to the concerned employees be recovered in 60(sixty) monthly instalments.

If such an employee retires after 01.04.2009 before completion of recovery of 60(sixty) instalments, balance should be recovered from his terminal dues. If the terminal dues of those retirees have already been settled, the balance amount should be recovered from second instalment of arrears of WBSEDCL (ROPA)-2009. In no case, other than retirees, such excess payment/overdrawal should be recovered from the second instalment of arrears of ROPA-2009. Fixation of Pay of such employees who have retired in between 01.01.06 to 31.03.09 after having their Pay fixed in the elevated scale with effect from 01.01.06 or thereafter but before 31.03.09, will have to be refixed in line with the Office Order No: 116 dated 28.04.2009 and recovery of excess drawal, if any, from 01.04.07 to 31.03.09 is to be made from 2nd instalment of arrears of ROPA-2009, and Pension, if settled otherwise, will also have to be reviewed in line with this Order and overdrawal of pension, if any, is to be recovered from 2nd instalment of arrears of pension or any other terminal dues.

Fixation in this manner may also result in reduction of Pay with effect from 01.04.2009 in respect of those employees where Office Order No: 116 dated 28.04.2009 has not been enforced by the respective DDOs. Such excess payment/overdrawal on and from 01.04.2009 till July, 2010 be recovered from second instalment of arrears of ROPA-2009."

WBSEDCL (ROPA) Rules, 2009 as well as subsequent clarifications issued thereon so far those are inconsistent with the Office Order No.116 dated 28.4.2009 shall be deemed to have been modified to the above extent only.

This has approval of the Chairman and Managing Director.


21.07.10
(D. Goswami)
Director(H.R.)